



Summary Judgment in Administrative Decisions

Overview

Under [29 CFR 1614.109](#) (g), an Equal Employment Opportunity Commission administrative judge may issue a summary judgment decision when the AJ finds that there are no genuine issues of material fact a complaint. In a nutshell, summary judgment is appropriate when the material facts of a case are undisputed and the AJ simply needs to apply the law to those facts. Summary judgment can provide for prompt disposition of a complaint. However, it should not be undertaken if the record indicates that there are disputes over the facts crucial to the outcome of the case, which will require credibility determination or other fact-finding by the administrative judge.

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Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cit source. The references to **Hadley** in this Quick Start Guide are to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive Web rights.

When summary judgment is appropriate

- Summary judgment, a decision without a hearing, is proper when "material facts are not in genuine dispute." [29 CFR 1614.109](#) (g) [EEOC MD-110, Chapter 7, III, E](#).
- An issue of fact is "genuine" if the evidence is such that a reasonable fact finder could find in favor of the non-moving party. *Carey v. Federal Maritime Commission*, [109 LRP 5331](#), EEOC No. 0120070136 (EEOC OFO 2009), *citing Celotex v. Catrett*, [103 LRP 35872](#), 477 U.S. 317 (U.S. 1986).
- "A fact is 'material' if it has the potential to affect the outcome of the case." *Carey v. Federal Maritime Commission*, [109 LRP 5331](#), EEOC No. 0120070136 (EEOC OFO 2009).
- In ruling on a motion for summary judgment, a court's function is not to weigh the evidence but rather to determine whether there are genuine issues for trial. *Carey v. Federal Maritime Commission*, [109 LRP 5331](#), EEOC No. 0120070136 (EEOC OF 2009), *citing Anderson v. Liberty Lobby, Inc.*, [103 LRP 35438](#), 477 U.S. 242 (U.S. 1986).
- Only a dispute over facts that are truly material to the outcome of the case should preclude summary judgment. [EEOC MD-110, Chapter 7, III, E](#), *citing Anderson v. Liberty Lobby, Inc.*, [103 LRP 35438](#), 477 U.S. 242 (U.S. 1986).
- "In both the federal court system and the administrative process, [summary judgment] is designed to facilitate faster adjudication of claims where critical facts are uncontested -- that is, where the only task remaining is to apply the relevant law to undisputed facts to determine which party should prevail." *Petty v. Department of Defense, Defense Security Service*, [103 LRP 31116](#), EEOC No. 01A24206 (EEOC 2003).
- In *Petty v. Department of Defense, Defense Security Service*, [103 LRP 31116](#), EEOC No. 01A24206 (EEOC 2003), the EEOC concluded that several criteria must be met before an AJ can appropriately issue a decision without a hearing:
 - The administrative judge must be certain that the investigative record has been adequately developed, either through the agency's investigation or under the AJ's guidance.
 - There must be no genuine issues of material fact.
 - The AJ must not have to find facts in order to issue the decision without a hearing.
 - The AJ must ensure the party opposed to summary judgment has been given: 1) ample notice of the proposal to issue a decision without a hearing; 2) a comprehensive statement of the allegedly undisputed material facts; 3) the opportunity to respond to such a statement; and 4) the chance to engage in discovery before responding, if necessary.

When summary judgment is not appropriate

- A grant of summary judgment is not appropriate when the credibility of witnesses is at issue. *Sigmon v. Department of Veterans Affairs*, [112 LRP 32267](#), EEOC No. 01-2011-0908 (EEOC OFO 2012).

- If a case can only be resolved by weighing conflicting evidence, issuing a decision without holding a hearing is not appropriate. *Carey v. Federal Maritime Commission*, [109 LRP 5331](#), EEOC No. 0120070136 (EEOC OFO 2009).
- "Truncation of this process, while material facts are still in dispute and the credibility of witnesses is still ripe for challenge, improperly deprives complainant of a full and fair investigation of her claims." *Bang v. U.S. Postal Service*, [98 FEOR 1217](#), EEOC No. 01961575 (EEOC OFO 1998).
- The commission has noted that when a party submits an affidavit and credibility is at issue, "there is a need for strident cross-examination and summary judgment on such evidence is improper." *Pedersen v. Department of Justice*, [95 FEOR 3152](#), EEOC No. 05940339 (EEOC 1995).

Initiating summary judgment

- A decision without a hearing can be issued on the motion of either party or initiated by the administrative judge assigned to the case. [EEOC MD-110, Chapter 7, III, E.](#)

Procedure: role of the parties

- "A party who believes that some or all material facts are not in genuine dispute may file a motion in support of this contention with the Administrative Judge at least fifteen (15) days prior to the hearing, or at such earlier time as required by the Administrative Judge." [EEOC MD-110, Chapter 7, III, E.](#)
- **Hadley:** Motions for summary judgment should be filed at the earliest opportunity because requests for extensions of time to respond are not unusual and the judge must have some opportunity after all submissions are filed to review those submissions and issue a decision. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Summary Judgment.](#)
- **Hadley:** Motions for partial summary judgment can be used to dispense with some claims or issues where there are no material facts in dispute, so that only the contested claims or issues go to hearing. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Partial Summary Judgment.](#)
- A copy of a motion for a decision without a hearing must be served on the opposing party. [EEOC MD-110, Chapter 7, III, E.](#)
- The opposing party has 15 days after receiving a motion to a decision without a hearing to file any opposition to the motion. [EEOC MD-110, Chapter 7, III, E.](#)
- "[B]oth parties should be granted five days from receipt of each other's responses to submit a reply." [Handbook for Administrative Judges.](#)

Procedure: role of the administrative judge

- "If the Administrative Judge determines that some or all of the material facts are not in genuine dispute, s/he may, after giving notice to the parties and providing them an opportunity to respond within 15 days of receipt of the notice, issue an order limiting the scope of the hearing or issue a decision without conducting a hearing." [EEOC MD-110, Chapter 7, III, E.](#)
- **Hadley:** Issuing a notice of intent does not commit the administrative judge to issuing a summary judgment decision. After receiving the responses of the parties, the judge may conclude that there are material facts in dispute that require a hearing. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Sua Sponte Summary Judgment.](#)
- The administrative judge assigned to the case "may provide notice requiring the parties to appear and present oral argument or testimony in support of a motion for summary judgment." [EEOC MD-110, Chapter 7, III, E.](#)
- An administrative judge "may grant a motion for summary judgment in its entirety, or where appropriate, may grant partial summary judgment which limits the issues in dispute." [29 CFR 1614.109 \(g\); Handbook for Administrative Judges.](#)
- **Hadley:** If a thorough motion for summary judgment is filed, with appropriate citations to the record, an administrative judge may simply grant the motion for summary judgment, or adopt portions of it in granting summary judgment. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Summary Judgment.](#)
- "A statement of undisputed material facts must appear in: (1) a party's motion for a decision without a hearing; (2) an Administrative Judge's notice of intent to a decision without a hearing; and (3) an Administrative Judge's decision issued without a hearing. This will provide both parties a full and fair opportunity to respond and will permit the Commission to have the benefit of a complete record if the final agency action is appealed." [Handbook for Administrative Judges.](#)
- An administrative judge's notice to the parties regarding his/her intent to issue a decision without a hearing must:
 1. Indicate in whose favor summary judgment is being proposed;
 2. Identify the applicable legal standards and burdens of proof with respect to each claim;
 3. Set forth the legal standards for issuance of a decision without a hearing;
 4. Identify the undisputed material facts which appear to be dispositive of the case; and
 5. Direct the parties to cite to specific evidence contained in the report of investigation which creates a factual dispute regarding a material issue and to include any relevant documentary evidence or witness statements, interrogatory answers, admissions, or other supporting materials from outside the report of investigation, with an explanation of the relevance of all materials submitted. [Handbook for Administrative Judges.](#)
- An administrative judge may issue a decision without a hearing only after determining that the record has been adequately developed. *M. O. v. Department of Veterans Affairs*, [122 LRP 47490](#), EEOC No. 2021004377 (EEOC OFO 2022).

- "A party's failure to respond to the Administrative Judge's notice of intent to issue a summary disposition is not grounds for a sanction. When a response is not timely filed, the Administrative Judge should exercise discretion as to whether to consider the response, taking into account, among other things, whether good cause has been shown for the delay." [Handbook for Administrative Judges](#).
- "The evidence of the non-moving party must be believed at the summary judgment stage and all justifiable inferences must be drawn in the non-moving party's favor." *Carey v. Federal Maritime Commission*, [109 LRP 5331](#), EEOC No. 0120070136 (EEOC OFO 2009), citing *Anderson v. Liberty Lobby, Inc.*, [103 LRP 35438](#), 477 U.S. 242 (U.S. 1986).
- **Hadley:** When an administrative judge issues a partial summary judgment decision, it is not a final decision with appeal rights to the EEOC's Office of Federal Operations. The claims not addressed through summary judgment go to a hearing. After all of the claims are decided and the agency takes a final action, either party can appeal any of the claims to the EEOC. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Partial Summary Judgment](#).

Opposing a motion for summary judgment

- "[A] mere recitation that there is a factual dispute is insufficient. The party opposing summary judgment must identify the disputed facts in record with specificity or demonstrate that there is a dispute by producing affidavits or records that tend to disprove the facts asserted by the moving party. In addition, the non-moving party must explain how the facts in dispute are material under the legal principles applicable to the case." [EEOC MD-110, Chapter 7, III, E](#).
- **Hadley:** A complainant can defeat a motion for summary judgment by showing discovery is necessary in order to determine if there are material facts in dispute. However, the complainant must identify with some specificity "what the discovery response could disclose that would put a material fact in dispute." General conclusory statements are not enough. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Summary Judgment](#).
- In addressing an administrative judge's issuance of summary judgment, a complainant's opposition must consist of more than mere unsupported allegations, bare assertions, general denials, conclusory allegations, or mere suspicion, but must be supported by affidavits or other competent evidence setting forth specific facts showing that there is a genuine issue for a hearing. *Edward W. v. Department of Agriculture, Food and Nutrition Service*, [122 LRP 23310](#), EEOC No. 2022002978 (EEOC OFO 2022).
- A party "opposing the issuance of a decision without a hearing should not rely solely on mere counselor report or complaint allegations, speculation, conclusory statements, or denials. Instead, the opposing party should generally point to evidence from the investigative report gleaned in discovery (e.g., witness affidavits, interrogatories, admissions, deposition testimony, or other supporting materials) to demonstrate that there are genuine issues of material fact which mandate a full hearing." *Petty v. Department of Defense, Defense Security Service*, [103 LRP 31116](#), EEOC No. 01A24206 (EEOC 2003).
- **Hadley:** A complainant's failure to respond to a motion for summary judgment or an administrative judge's notice of intent to issue a summary judgment decision does not warrant dismissal of the case as a sanction. Failure to respond does not warrant any sanction at all. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Failure to Respond to Motion](#) citing *Hooker v. Department of Defense*, [102 LRP 32093](#), EEOC No. 01A05543 (EEOC OFO 2002); *Gladden v. Department of Commerce*, [102 LRP 31127](#), EEOC No. 01A03968 (EEOC OFO 2002).

Discovery issues

- "In circumstances where a motion for summary judgment is filed before the parties have engaged in any discovery, or after the close of discovery, the Administrative Judge may provide the parties an opportunity for limited discovery or some other appropriate means of information gathering specifically designed to respond to the motion." [Handbook for Administrative Judges](#).
- By failing to respond properly to the agency's discovery shortcomings, the AJ effectively denied the complainant an opportunity to obtain relevant evidence he might have used to counter the agency's motion for a decision without a hearing. *Petty v. Department of Defense, Defense Security Service*, [103 LRP 31116](#), EEOC No. 01A24206 (EEOC 2003).

Summary judgment upheld

- An administrative judge appropriately granted summary judgment in favor of the Department of Veterans Affairs on a social worker's claim she was subjected to disability-based harassment when an official counseled and admonished her in connection with the behavior of her service dog. In part, she raised no genuine issue of material fact as to whether her disabilities played a role in any of the agency's attempt to convince her that she needed to exercise better control over her dog based on multiple reports from employees, patients, and visitors that her dog had been threatening, aggressive, and not always under her control. *Ayesha W. v. Department of Veterans Affairs*, [119 LRP 47767](#), EEOC No. 2019001899 (EEOC OFO 2019).
- An EEOC administrative judge properly granted summary judgment in favor of the agency on a mail carrier's claim he was subjected to discrimination when he was instructed to attend a fitness for duty examination and issued a notice of removal. There was no evidence to rebut the agency's legitimate explanation that the carrier's supervisor requested that he attend a FFDE based on an observation of his unsafe behavior, including road rage incidents, and the notice of removal was based on numerous incidents of unauthorized overtime, additional incidents of unsafe driving, and his prior disciplinary history. *Complainant v. U.S. Postal Service*, [012013302 115 LRP 20097](#) (EEOC OFO 2015).
- The AJ appropriately issued a decision without a hearing because the record was adequately developed and the complainant did not offer sufficient evidence to establish any genuine issues of material fact with regard to her claim she received an inappropriate performance rating and less favorable distribution of assignments. The two coworkers she pointed to were not similarly situated employees and she did not present enough specific evidence to refute the agency's legitimate explanation for its actions. *Davis v. Department of Labor, Occupational Safety & Health Administration*, [110 LRP 38187](#), EEOC No. 0120101468 (EEOC OFO 2010).
- The EEOC affirmed an AJ's determination that the complainant raised no genuine issues of material fact with regard to the Department of Air Force's explanation that he was suspended for failing to follow the rules for requesting leave. Accordingly, a decision without a hearing was appropriate. *Boston v. Department of the Air Force*, [106 LRP 31266](#), EEOC No. 01A51483 (EEOC OFO 2006).

- The agency explained that its decision to replace the complainant in his bid job was pursuant to an agreement settling another employee's EEO complaint. The complainant did not raise sufficient evidence to support a determination that this explanation was pretext for unlawful discrimination. Therefore, summary judgment for the agency was appropriate. *Dashek v. U.S. Postal Service*, [105 LRP 3173](#), EEOC No. 01A50145 (EEOC OFO 2005).
- The AJ properly determined that there was no genuine issue of material fact because the complainant had only made a general pleading with regard to his performance as it related to his not being assigned to a supervisory training program. *Patton v. U.S. Postal Service*, [93 FEOR 3327](#), EEOC No. 05930055 (EEOC 1993).

Summary judgment vacated

- The EEOC reversed an administrative judge's decision granting summary judgment for the agency after determining in part that there were genuine issues of fact as to whether a claims specialist had a medical need for a service dog and whether the specialist's dog met the agency's qualifications to work as a service animal. *Dona A. v. Social Security Administration*, [122 LRP 17050](#), EEOC No. 2022000745 (EEOC OFO 2022).
- An administrative judge improperly granted summary judgment for the agency on an employee's claim he was subjected to race, national origin, and age discrimination when he was denied a promotion. In part, the EEOC found that credibility was at issue where the deciding official said she was unaware of the employee's race, national origin, or age, but she interviewed him. Also, she claimed she had no organizational relationship with the employee but said one of the reasons for not selecting him was her perception of his work. The credibility of other witnesses also required assessment. *Abe K. v. U.S. Postal Service*, [121 LRP 40515](#), EEOC No. 2020004252 (EEOC OFO 2021).
- An EEOC administrative judge improperly granted summary judgment to the Department of Homeland Security on a specialist's claim of race discrimination related to his removal from a detail. In part, there were genuine issues of material fact and issues of credibility with regard to the specialist's performance. The AJ accepted the agency's explanation as the truth, even though conflicting evidence was offered. The EEOC sent the case back for a hearing. *Complainant v. Department of Homeland Security*, [0120123143](#), [115 LRP 34053](#) (EEOC OFO 2015).
- An EEOC AJ improperly granted summary judgment for the agency after determining that the complainant's plantar fasciitis was not a disability. The record was not sufficiently developed for such a decision to be made on summary judgment. *Smith v. U.S. Postal Service*, [112 LRP 34935](#), EEOC No. 0120082306 (EEOC OFO 2012).
- Summary judgment was inappropriate in the complainant's discriminatory nonselection claim because the parties presented different accounts of a selecting official's alleged age-based comments. The AJ's apparent acceptance of the official's version was improper at the summary judgment stage, where "the evidence of the non-moving party must be believed and all justifiable inferences must be drawn in the non-moving party's favor." *Carey v. Federal Maritime Commission*, [109 LRP 5331](#), EEOC No. 0120070136 (EEOC OFO 2009).
- Summary judgment was inappropriate with regard to the complainant's claim that she was sexually harassed by a supervisor because there was conflicting evidence. The complainant and some coworkers stated that the supervisor used a stick called "The Enforcer" to intimidate female employees. The agency conceded that the supervisor used the stick, but claimed that some female employees did not find it intimidating. *Riggle v. Department of Justice*, [108 LRP 51162](#), EEOC No. 0120081964 (EEOC OFO 2008).
- The EEOC vacated the AJ's decision without a hearing that found the Social Security Administration engaged in age discrimination when it did not select the complainant for a management position. The AJ failed to address the selecting official's legitimate reasons for choosing selectee over the complainant. *Matuscak v. Social Security Administration*, [108 LRP 31806](#), EEOC No. 072006001 (EEOC OFO 2008).
- An AJ improperly granted summary judgment for the agency when there were genuine issues of material fact in dispute: whether the complainant was performing higher level duties; whether lead duties were removed from her in retaliation for her complaint; whether she voluntarily retired early or retired due to a hostile work environment; and whether management's actions were retaliatory and could have a chilling effect on EEO activity. *Taylor v. Department of the Navy*, [108 LRP 32115](#), EEOC No. 0120064943 (EEOC OFO 2008).
- An EEOC AJ erred in issuing summary judgment in favor of a complainant who alleged she was harassed by a postmaster who assaulted her during a martial arts demonstration. In part, there were serious factual disputes as to how the postmaster's martial arts demonstration came about, whether his blow to the complainant's chest caused her to fall down, and whether the complainant asked the postmaster to stop. *Bullard v. U.S. Postal Service*, [108 LRP 25602](#), EEOC No. 0720060045 (EEOC 2008).
- An AJ improperly granted summary judgment for the agency on the complainant's sexual harassment claim. There were genuine disputes over the complainant's promptness in reporting her supervisor's alleged harassment, the extent of the alleged harassment, and the agency's response. *Coley v. U.S. Postal Service*, [108 LRP 22269](#), EEOC No. 0120062109 (EEOC OFO 2008).
- An AJ improperly granted summary judgment for the complainant on his Equal Pay Act and sex discrimination claim. There were genuine issues of fact with regard to why the comparative female employee was paid at the GS-15 level, with some evidence indicating that it could have been based on a factor other than her sex. *Zieff v. Department of Homeland Security*, [107 LRP 27111](#), EEOC No. 0720040139 (EEOC 2007).
- An AJ improperly granted summary judgment for the Department of Veterans Affairs. Although the complainant was a lesbian and may have been harassed on that unprotected basis, she raised genuine issues of material fact as to whether her male coworkers also harassed her because of her gender and in retaliation for her complaints. *Nicholas v. Department of Veterans Affairs*, [106 LRP 17469](#), EEOC No. 01A51368 (EEOC 2006).
- An AJ erred in issuing a decision without a hearing in favor of the Department of the Air Force on the complainant's claim he was subjected to disability discrimination when he was denied a position. There were genuine issues of fact about whether the complainant was an individual with a disability and whether his eye condition would be a threat to safety. *Mortensen v. Department of the Air Force*, [105 LRP 55259](#), EEOC No. 01A24231 (EEOC 2005).
- The administrative judge erred in disposing of the complainant's reprisal claim without conducting a hearing. Several of the complainant's discovery requests, to which the agency had not yet responded by the time of the AJ's decision, may have exposed facts supporting the retaliation claim. *Zerman v. Department of Agriculture*, [105 LRP 17031](#), EEOC No. 01A51007 (EEOC OFO 2005).

- Because there were "unresolved issues requiring an assessment as to the credibility of the various management officials and complainant's judgment as a matter of law for complainant should not have been granted." *Jew v. Department of Education*, [105 LRP 5609](#), EEOC No. 07A30131 (EEOC 2005).
- The complainant's claim she was discriminatorily disqualified from consideration for two positions was not appropriate for summary judgment. She raised several pertinent arguments in opposition to the agency's representations, but the AJ's refusal to allow her to engage in discovery prevented her from effectively opposing summary judgment by showing there were material facts in dispute. *Raza v. Department of Veterans Affairs*, [104 LRP 45848](#), EEOC No. 01A30623 (EEOC 2004).

Other Resources

- [EEOC Management Directive 110, Chapter 7, Hearings](#)
- [Handbook for Administrative Judges](#)
- For more guidance, see:
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 6 -- EEO Hearings, Subchapter 02 -- Summary Judgment](#)
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 6 -- EEO Hearings, Subchapter 02 -- Summary Judgment, Section A -- Summary Judgment Standards](#)
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 6 -- EEO Hearings, Subchapter 02 -- Summary Judgment, Section C -- Disputes of Material Fact](#)
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 6 -- EEO Hearings, Subchapter 02 -- Summary Judgment, Section E -- Partial Summary Judgment](#)

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